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25STCV18416 Alfa Prosmarttech PTE, LTD, et al. v.
Izrailbekova, et al.

Thursday,
July 30, 2026

[TENTATIVE] ORDER DENYING THE MOTION TO QUASH AND GRANTING THE ALTERNATIVE REQUEST TO MODIFY DEPOSITION SUBPOENAS FOR PRODUCTION OF BUSINESS RECORDS (9450)

I.
BACKGROUND

The second amended complaint seeks recovery of more than $9 million dollars in funds alleged stolen by Nigina Izrailbekova ("Defendant"), from the five corporate entities (Plaintiffs) she was employed to serve. Plaintiffs allege seven causes of action for breach of contract, misrepresentation, conversion, and other claims arising from these alleged facts.

Defendant moves for an order quashing deposition subpoenas for business records served on Citibank, N.A. and HSBC Bank USA, N.A. seeking Defendant's consumer banking records and related materials. The subpoenas seek constitutionally protected private financial information, are facially overbroad, and are not narrowly tailored to the issues that may properly remain after the pleadings are tested.

II. LEGAL STANDARDS

The court can quash a subpoena to protect a party from unreasonable or oppressive demands including unreasonable violations of the right of privacy. The court has discretion to modify the subpoena or direct compliance upon terms or conditions as the court declares, including issuing protective orders. (Code Civ. Proc., § 1987.1.)

The party claiming a privacy interest bears the burden of proof on the issue. (Williams v. Superior Court (2017) 3 Cal.5th 531, 531. [“The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious.”].)

Where privacy rights are implicated, the requesting party must show that the records sought are directly relevant to the plaintiff’s claims and are essential to the fair resolution of the lawsuit. (Davis v. Superior Court (1992) 7 Cal.App.4th 1008, 1014). The burden falls on the party asserting privacy to establish the extent and seriousness of the prospective invasion. (Williams v. Superior Court (2017) 3 Cal.5th 531, 557.)

III.
DISCUSSION

A. Prematurity

Defendant first contends that the subpoena is premature because Defendant has demurred to the operative pleading, which will not be heard until August 4, 2026, at the earliest. Plaintiff may commence discovery by serving a deposition notice 20 days after the date of service of summons any defendant. (Code Civ. Proc., § 2025.210 (b).) Service on all defendants is not a perquisite to commencing discovery. (Waters v. Superior Court of Los Angeles County (1962) 58 Cal.2d 885, 893 [… “we have concluded that a rigid requirement of service upon all defendants to start the running of the 20-day period would unduly impede plaintiff in discovery proceedings.”].)

B. Defendant is not an owner of the bank accounts whose records have been subpoenaed.

Plaintiffs
served the following amended deposition subpoenas (Berlin Decl., Ex. A-F):

1)
Plaintiff Technohike PTE LTD to Citibank
N.A for records of its own account No. 6317.

2)
Plaintiff Suntronix PTE LTD (“Suntronix”)
to HSBC Bank USA for its account records No. 1542.

3)
Plaintiff Suntronix to Citibank
N.A. for its account records No. 6803

4)
Plaintiff Prime Tech Solutions,
EOOD to Citibank N.A. for its account records No. 7092

5)
Plaintiff Martorel S.R.O. to
Citibank N.A. for its account records No. 3482

6)
Plaintiff Alfa Prosmarttech PTE
LTD to Citibank N.A. for its account records No. 2881 and 2242.

Defendant
has not shown that her privacy rights are implicated as a non-owner of the accounts. Defendant has not cited any authority that Plaintiffs’ service of a notice to consumer on Defendant creates a personal privacy interest in a corporation’s bank records. As Defendant concedes, the records sought concern Defendant’s “alleged access to the accounts, including KYC materials, usernames, passwords, security questions, designated emails and phone numbers, and internal bank communications and logs.” (Mot. 6:20-22.)

Even
if Defendant’s privacy is implicated, the records are directly relevant to the second amended complaint which alleges that Plaintiffs gave Defendant

unfettered access to Plaintiffs' corporate bank accounts as the director of United States operations for each of the five Plaintiffs. (SAC ¶ 2.) Plaintiffs allege Defendants "misappropriated the money from the Plaintiffs' accounts and moved it to accounts they owned or controlled. They then made luxury purchases for themselves with funds received from the Plaintiffs' accounts, effectively laundering the stolen proceeds. (SAC ¶ 4.) The information is relevant to determining Defendant's access and transfers to Plaintiffs' bank accounts.

Defendant's reliance on Valley Bank of Nevada v. Superior Court (1975) 15 Cal.3d 652 is misplaced. That case sought non-party records of customers who gave information to a bank. (Id. at 654.) The bank customers here are all five corporate Plaintiffs who seek their own records. Nevada Bank affirmed that a bank customer has a reasonable expectation of privacy "with respect to financial information disclosed to the bank." (Valley Bank of Nevada v. Superior Court (1975) 15 Cal.3d 652, 656.) As Plaintiffs observe in opposition, the bank records sought are not Defendant's bank records. They are Plaintiffs' bank records. Defendant is a non-owner signatory.

Defendant next argues that the materials sought in the subpoenas must be described with reasonable particularity and Plaintiffs "may not use generalized demands untethered to focused evidentiary need" citing Calcor Space Facility, Inc. v. Superior Court (1997) 53 Cal.App.4th 216. The subpoena at issue there "did not identify any specific document, but merely described broad categories in a 12-page attachment to the subpoena that included 6 pages of "definitions" and "instructions." (Calcor at 219.) The Court held that the subpoena "must describe the documents to be produced with reasonable particularity. Generalized demands, insupportable by evidence showing at least the potential evidentiary value of the information sought, are not permitted." (Calcor at 218.)

The subpoenas meet that standard. The requests are not generalized. Defendant can summarize the request for records relating to "alleged access to the accounts, including KYC [Know Your Customer] materials, usernames, passwords, security questions, designated emails and phone numbers, and internal bank communications and logs. (Mot. 6:20-22.)

Plaintiffs amended the scope of records sought before they were served to address Defendant's specific objections .

(Opp. 9:26-10:2.) Plaintiffs narrowed the request to “principally seek monthly account statements, transaction ledgers, and wire transfer records for the pleaded accounts during the period of the alleged scheme, as well as Know Your Customer (KYC) and account-opening records establishing the identity of the person who opened and controlled each account and the same for the closing of the accounts.” (Opp. 10:3-6.)

Plaintiffs are willing to amend the scope of records further to require production of the following:

“1) monthly account statements for each pleaded account for the period January 1, 2022, through the date of account closure or the date of the subpoena, whichever is earlier;

2) transaction-level ledgers showing all debits, credits, and wire transfers during that period;

3) account opening and KYC records limited to the identity of the person(s) who opened and controlled each account;

4) account closing records including the identity of the person(s) who initiated and authorized the closures;

5) records of all outgoing wire transfers, including beneficiary name, beneficiary account number, receiving bank, and transfer amount;

6) information including the logins and account information available for who made and authorized the transfers, and 7) any communications between the person(s) initiating said transfers and the bank." (Opp. 12:11-24.

Plaintiffs will forgo requests for internal bank correspondence security credentials (outside of information leading to the identity of the person authorizing the transfers), and third-party payment application histories. (Opp. 12:26-18.)

In reply, Defendant argues that the narrowed scope is not narrow enough as it implicates identifying information and confidential access-related information. Defendant replies that the documents should not be compelled before the pleadings are settled. (Reply, 2:17-20.) As previously noted, Defendant has not supported the request for a hold on discovery until the pleadings are finalized.

Plaintiff states in opposition that the KYC files contain personal identifying information including Defendant's SSN. Plaintiffs argue that this information is necessary to establish that Defendant controlled the corporate accounts under her own personal identifier. (Opp. 11:15-20.)

The right to privacy is not absolute. The Court weighs competing interests to determine whether production should be compelled by considering the purpose of the information sought, the effect that disclosure will have on the affected persons and parties, the nature of the objections urged by the party resisting disclosure, and whether there are less intrusive means for obtaining the requested information. (SCC Acquisitions, Inc. v. Superior Court (2015) 243 Cal.App.4th 741, 755).

The KYC information is necessary to establish Defendant's liability. The scope of records sought as further amended by Plaintiffs is not unreasonable. Plaintiffs do not oppose a protective order which will further protect Defendant's personal information.

IV. CONCLUSION

Based on the foregoing, the Court DENIES the motion to quash but GRANTS the alternative request to modify the subpoenas to reflect Plaintiffs' revised scope of records with addition of internal bank correspondence that do not implicate customer financial privacy.

1) monthly account statements for each pleaded account for the period January 1, 2022, through the date of account closure or the date of the subpoena, whichever is earlier;

2) transaction-level ledgers showing all debits, credits, and wire transfers during that period;

3) account opening and KYC records limited to the identity of the person(s) who opened and controlled each account;

4) account closing records including the identity of the person(s) who initiated and authorized the closures;

5) records of all outgoing wire transfers, including beneficiary name, beneficiary account number, receiving bank, and transfer amount;

6)
information including the logins and account information available for who made
and

authorized
the transfers, and

7) any communications between the
person(s) initiating said transfers and the bank.

8) internal bank correspondence security
credentials (outside of information leading to the identity of the person
authorizing the transfers).

Plaintiffs'
request for third-party payment application histories potentially implicate
non-party customer personal information, and Plaintiffs do not require such
information at this point.